Brazoria County District Court

Cause No. 2024-CV-0047

Susan Ramirez, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	1-18-25
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure.

Subject to and without waiving the foregoing general denial, Defendant asserts the following affirmative defenses. First, the collision was a low-speed event, and the injuries claimed by Plaintiff were not proximately caused by the occurrence in question, but instead arose from pre-existing conditions or unrelated intervening causes. Second, Plaintiff failed to exercise ordinary care for Plaintiff's own safety, and any recovery must be reduced under Texas Civil Practice and Remedies Code Chapter 33 in proportion to Plaintiff's percentage of responsibility. Third, Plaintiff has failed to mitgiate damages by unreasonably delaying or forgoing reasonable medical treatment, and any recovery for such damages is barred to that extent.

Defendant reserves the right to amend this Answer as discovery proceeds.